

25LBCV00535 25LBCV00535

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-07-30

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Case Number: 25LBCV00535 Hearing Date: July 30, 2026 Dept: S28

BACKGROUND

On February

28, 2025, Plaintiffs Lorena Ruiz and Antonio Garcia Pena ("Plaintiffs") commenced this action against American Honda Motor Co., Inc. ("Defendant") alleging violations of Statutory Obligations under the Song-Beverly Act.

On

June 10, 2026, Defendant filed the instant Motion to Transfer Venue.

As of July 17, 2026, Plaintiff has not filed opposition.

DISCUSSION

Applicable

Law

The Court may change the place of trial when (a) the court designated in the complaint is not the proper court, (b) there is reason to believe that an impartial trial cannot be had there, (c) when the convenience of witnesses and the ends of justice would be promoted by the change, or (d) when there is no judge qualified to act. (Code Civ. Proc., § 397.)

"Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them

reside at the commencement of the action is the proper court for the trial of the action.” (Code Civ. Proc., § 395, subd. (a).)

“[T]he county where the complaint was filed is presumptively the proper county for a trial of the action, and the burden of proving otherwise rests with the party moving to change venue[.]” (Black Diamond Asphalt, Inc. v. Superior Court (2003) 109 Cal.App.4th 166, 170 (“Black Diamond”).)

If an action is filed in the incorrect court and a defendant moves to transfer before or at the time that it answers, demurs, or moves to strike and within the time otherwise allowed to respond to the complaint, the court must transfer the action to the proper court. (Code Civ. Proc., § 396b, subd. (a).) However, if an answer has already been filed, the court may retain the action in the county where commenced if the convenience of the witnesses or the ends of justice will thereby be promoted. (Code Civ. Proc., § 396b, subd. (d).)

“A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases.” (Code Civ. Proc., § 395.)

Analysis

Defendant

argues that venue should be transferred to Monterey County under CCP 396b and 397. (Mot., p. 2.) Defendant must carry the burden of rebutting the presumption that Plaintiff’s choice of venue is proper. (Black Diamond, *supra*, 109 Cal.App.4th at p. 170.)

Here, this action is over 500 days old. Trial has been set for August 3, 2026 since July 28, 2025. The parties did not stipulate to transfer venue until May 4, 2026, and Defendant did not file the instant motion until over one month later. Defendant must file these transfer motions or the parties must stipulate to transfer at the outset of the case, when the ends of justice would be served by transfer. Defendant continues to file these motions very close to trial. The Court has made clear to

Defendant in prior rulings that transfer motions on the eve of trial will be denied, and they will continue to be denied. The Court suggests, in the interest of judicial economy, that Counsel may choose to take similar transfer motions off calendar.

CONCLUSION

Defendant's Motion for Change of Venue is
DENIED.

Moving party to give notice.